The tax amount collected as cess should not be used for purposes other than the purposes for which it is levied as the Constitution says it is leviable for specific purposes.

Emergency and Tax Devolution

While the Proclamation of Emergency is in operation the President by order can direct that the provisions of Article 268 to 279 have effect subject to such exceptions and modifications as he thinks fit. It shall extend at the maximum till the end of the financial year in which such Proclamation of Emergency ceases to operate.

GST Council

Under Article 279A Goods and Services Tax Council was constituted. It has representation from the Centre and all the states and three Union Territories having legislative assembly.

The Goods and Services Tax Council consists of the following members:—

a)	The Union Finance Minister	Chairperson
(b)	The Union Minister of State in charge of Revenue or Finance	Member
(c)	The Minister in charge of Finance or Taxation or any other Minister nominated by each State Government **Note:** UTs having legislative assembly also have membership. Hence total members from the states (28+3=31)	Members

The total number of members is 32 (31+1). One Minister is chosen as Vice –Chairperson of the council amongst the Minister in charge of Finance or Taxation or any other Minister nominated by each State Government for such period as they may decide.

Though the Parliament and the state legislatures are given power to enact laws relating to GST important aspects related to GST like the rate, goods and services to be exempted etc., shall be recommended